

Robertson was the driver of the blue pickup in the opposite lane of traffic just prior to the collision, Plaintiffs could and should have presented that evidence. Plaintiffs could have stated exactly how and when they discovered this fact. Their silence on the topic speaks volumes. The only other evidence provided by Plaintiffs is the declaration of counsel who provided her opinion that the Traffic Collision Report did not make it clear that Robertson was actual driver in the opposing lane of traffic and states that it was not until Robertson's deposition on December 8, 2025 that this fact was clear. The opinion regarding the report being unclear is unreasonable. There has been no explanation provided for the delay from December 8, 2025 to March 12, 2026. Although three months is not an extremely long period of time, at the December 8, 2025 deposition, trial was just over five months away. The deposition transcript from Robertson's deposition was not provided. Nothing argued by Defendants or presented as evidence raises a triable issue of material fact as to whether Plaintiffs knew of Robertson's identity and the underlying facts at the Complaint was filed. There is also no triable issue of material fact as to whether the delay was unreasonable or whether Robertson would suffer actual prejudice.

The motion is **GRANTED**. Robertson is dismissed as Doe 1 and will remain in the matter as a Cross-Defendant only. Robertson provided proposed Order that will be modified to reflect the Court's ruling.

KATSKE VS. SHASTA COUNTY BOARD OF SUPERVISORS, ET AL.

CASE NUMBER: 26CV-0209919

Tentative Ruling on Motion for Attorney Fees: Intervenor Laura Hobbs, Deidre Holliday, Kari Chilson, Jim Burnett and Richard Gallardo ("Intervenor") move for an order awarding attorney fees pursuant to Code of Civil Procedure section 1021.5. Intervenor request an award of \$123,445 jointly and severally against Petitioner Jennifer Katske ("Petitioner") and Respondents Shasta County Board of Supervisors and Clint Curtis, in his official capacity as Shasta County Registrar of Voters ("Respondents"). Respondents have filed an Opposition to the Motion. Petitioner has filed a Request for Continuance of Hearing on the Motion. Intervenor oppose a continuance.

Request for Judicial Notice: Intervenor request the Court take judicial notice of the Shasta County Board of Supervisors Summary of Proceedings for the public meeting held on June 16, 2026 attached as Exhibit A. The request is denied because it was presented for the first time along with the Reply papers, leaving Petitioner and the County Board no opportunity to review and oppose the request.

Background: Petitioner initiated these proceedings on February 17, 2026 with the filing of a "Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief." Petitioner sought declaratory and injunctive relief to bar Respondents from placing the "Shasta County Voter ID, Hand-Counted Ballots, and Absentee Voting Limits Initiative" on the June 2, 2026 Shasta County ballot. Petitioner contended that certain provisions of the Initiative violated California law. On March 5, 2026, the Court granted leave for the Intervenor to enter the case.

The Intervenor filed a demurrer to the Petition, which the Court sustained without leave to amend on March 26, 2026, on the grounds that the Petition failed to state facts sufficient to constitute a cause of action pursuant to CCP 430.10(e). The Court also explained that pre-election review of the Initiative's legality was inappropriate, and that a post-election challenge would be the appropriate place to address Petitioner's arguments.

Standard: Code of Civil Procedure section 1021 provides that except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. Here, Intervenor seek attorney fees pursuant to CCP § 1021.5, which provides:

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred

on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. With respect to actions involving public entities, this section applies to allowances against, but not in favor of, public entities, and no claim shall be required to be filed therefor, unless one or more successful parties and one or more opposing parties are public entities, in which case no claim shall be required to be filed therefor under Part 3 (commencing with Section 900) of Division 3.6 of Title 1 of the Government Code.

CCP § 1021.5

Analysis: Respondents request the Court stay ruling on Intervenor's Motion for Attorney Fees. Petitioner also requests a continuance of the hearing. Both requests are made in part on the grounds that on June 12, 2026, California Attorney General Rob Bonta and Secretary of State Shirley Weber filed a Petition for Writ of Mandate, challenging Measure B (the ballot initiative at issue in this matter). *The People of the State of California v. County of Shasta*, et al., Case No. C106517, filed in the California Court of appeal for the Third Appellate District, names Intervenor as Real Parties in Interest. It argued that Measure B is unlawful, and requested the court strike the measure on an expedited basis in light of the upcoming November election.

On June 25, 2026, after the filing of the parties' briefing in this case, the court of appeal denied the state officials' petition for writ of mandate without prejudice on procedural grounds. The appellate court declined to exercise its original jurisdiction, and instead indicated that appellate review would be appropriate only after the matter was litigated in the superior court.

Given the state's expressed concerns with the legality of Measure B, it is apparent to the Court that litigation over the matter has likely not yet come to an end. Further, given the impact that implementation of Measure B would have over Shasta County elections less than 5 months away, any review sought in the superior court will likely be done on an accelerated basis. Until a determination as to the validity of Measure B is made, this Court cannot determine whether Intervenor has met their burden under CCP § 1021.5, thereby entitling them to attorney fees.

Therefore, pursuant to its authority under CCP § 128, and finding good cause, the Court will continue the hearing on this motion. Considering the likely accelerated nature of that matter, the Court finds that Intervenor will not be prejudiced by a continuance. Conversely, the potential for prejudice to Petitioner and Respondents absent a continuance is substantial. The ultimate determination of the legality of Measure B is clearly relevant to the Court's determination of whether a significant benefit has been conferred on the general public, and the necessity of private enforcement by Intervenor. The interests of justice are best served by a continuance. This motion is continued to **Monday, August 31, 2026 at 8:30 a.m. in Department 63**. The Court considers the matter fully briefed.

IN RE: MONDRAGON

CASE NUMBER: 26CV-0210282

Tentative Ruling on Petition for Change of Name: Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.